

Unofficial 20. Document

When recorded return to:

45
dr.

James L. Ugalde, Esq.
CLARK HILL PLC
3200 N. Central Ave., Suite 1600
Phoenix, Arizona 85012
For information contact:
Kelly Webster – kwebster@clarkhill.com

Trustee Sale No. 450938-1

**NOTICE OF TRUSTEE'S SALE AND NOTIFICATION OF
DISPOSITION OF PERSONAL PROPERTY**
(Axos Bank/RPC PHX N 4th, LLC)

The following legally described trust property will be sold, pursuant to the power of sale under the *Deed of Trust, Assignment of Leases and Rents, Security Agreement and Fixture Filing* (as amended or modified, the “Deed of Trust”) recorded on September 23, 2022, at Recording No. 20220732485, in the Official Records of the County Recorder for Maricopa County, Arizona (the “Official Records”). **NOTICE! IF YOU BELIEVE THERE IS A DEFENSE TO THE TRUSTEE SALE OR IF YOU HAVE AN OBJECTION TO THE TRUSTEE SALE, YOU MUST FILE AN ACTION AND OBTAIN A COURT ORDER PURSUANT TO RULE 65, ARIZONA RULES OF CIVIL PROCEDURE, STOPPING THE SALE NO LATER THAN 5:00 P.M. MOUNTAIN STANDARD TIME OF THE LAST BUSINESS DAY BEFORE THE SCHEDULED DATE OF THE SALE, OR YOU MAY HAVE WAIVED ANY DEFENSES OR OBJECTIONS TO THE SALE. UNLESS YOU OBTAIN AN ORDER, THE SALE WILL BE FINAL.** The sale will occur at public auction to the highest bidder, at **Clark Hill PLC, 3200 North Central Avenue, Suite 1600, Phoenix, Arizona 85012, on December 9, 2026, at 11:00 a.m.** of said day.

The following additional information concerning the trust real property, the Deed of Trust, and the Trustee's Sale is provided pursuant to A.R.S. § 33-808(C):

Street Address or Identifiable Location: 326, 334, 338 North 4th Avenue, Phoenix, Arizona 85003

Legal Description: See attached **Exhibit A**

Tax Parcel Number(s): 111-41-041, 111-41-043, and 111-41-046

Original Principal Balance shown on Deed of Trust: \$1,185,000.00

Beneficiary's Name and Address: Axos Bank, 4350 La Jolla Village Drive, Suite 100, San Diego, California 92122

Trustor's Stated Name and Address: RPC PHX N 4th, LLC, 1705 South Capital of Texas Highway, Suite 320, Austin, Texas 78746

Trustee's Name, Address and Telephone Number: James L. Ugalde, Esq., Clark Hill PLC, 3200 North Central Avenue, Suite 1600, Phoenix, Arizona 85012, Telephone: (602) 440-4817, Email:

jugalde@clarkhill.com (for information contact Kelly Webster, Telephone: (602) 440-4820, Email: kwebster@clarkhill.com)

Manner of Trustee Qualification: Member of State Bar of Arizona (A.R.S. § 33-803(A)(2))

Name of Trustee's Regulator: State Bar of Arizona (Arizona Supreme Court)

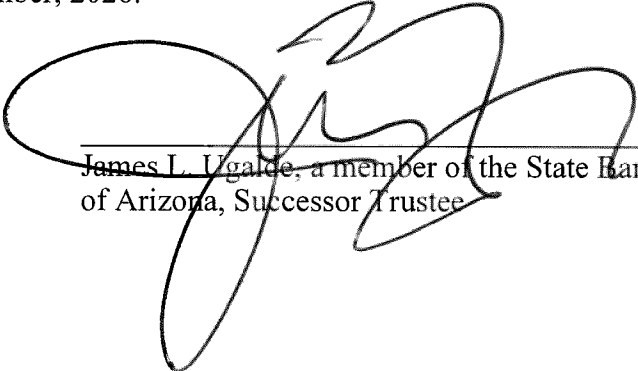
Personal Property Sale: At the same time and location as stated above, and pursuant to A.R.S. § 47-9604(A)(2) and A.R.S. § 47-9604(B)(2), the Trustee will also sell the personal property and fixtures described in the Deed of Trust and all collateral listed on the following UCC Financing Statement:

UCC Financing Statement filed with the Arizona Secretary of State on December 13, 2024 at Filing No. 2025-000-0982-9 and recorded in the Official Records on December 11, 2024 at Recording No. 20240658288.

The sale will be made for cash, federal funds wire transfer, or other form of payment satisfactory to Trustee (payable at the time of sale or as allowed by the Trustee under Arizona law), but without covenant or warranty, express or implied, regarding title, condition, possession, encumbrances, or rights, requirements, or limitations of any third parties or any other matter, to pay the obligations secured by the Deed of Trust in whole or in part. Every bidder except for Beneficiary will be required to provide a \$10,000.00 deposit in form satisfactory to Trustee as a condition to entering a bid. Beneficiary reserves the right to transfer the secured indebtedness to, and/or to acquire title to all or part of the collateral ^{Unofficial Document} name of, a title-holding affiliate following the commencement of this sale.

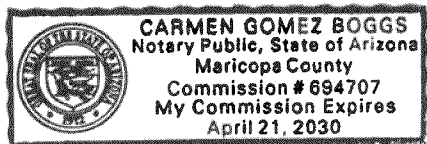
This sale will not exhaust the power of sale contained in the Deed of Trust as to any remaining property encumbered by the Deed of Trust, which may, at Beneficiary's option, be sold in one or more subsequent sale proceedings. The recordation of this Notice does not constitute an election to proceed against any given collateral, or to pursue any given remedy, to the exclusion of any other collateral or remedy. Trustee and Beneficiary expressly reserve the right, without impairing the effectiveness of the sale described herein, to conduct one or more further judicial or non-judicial sales of any of Beneficiary's collateral to clear or perfect title to any portion of or interest in the collateral or for any other purpose; the delivery or recordation of a Trustee's Deed to Beneficiary or any third party will in no way impair the foregoing right.

DATED this 2nd day of September, 2026.


James L. Ugalde, a member of the State Bar
of Arizona, Successor Trustee

STATE OF ARIZONA)
) ss.
 County of Maricopa)

The foregoing *Notice of Trustee's Sale and Notification of Disposition of Personal Property* consisting of eight (8) pages was acknowledged before me this ____ day of September, 2026, by James L. Ugalde, a member of the State Bar of Arizona, Successor Trustee.



Carmen Gomez Boggs

 Notary Public

Unofficial Document

EXHIBIT A¹**(Legal Description)**

The Land referred to herein below is situated in the City of Phoenix, County of Maricopa, State of Arizona, and is described as follows:

PARCEL NO. 1:

LOT 17 AND THE NORTH 19.75 FEET OF LOT 15, OF LA VILLA PLACE, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 1 OF MAPS, PAGE 65.

PARCEL NO. 2:

THAT PART OF THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 1 NORTH, RANGE 3 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, MARICOPA COUNTY, ARIZONA, DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF LOT 17, LA VILLA PLACE, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 1 OF MAPS, PAGE 65;

THENCE WEST 24 FEET MORE OR LESS TO ^{Unofficial Document} THE EAST LINE OF ORCHARD GROVE ADDITION TO PHOENIX;

THENCE SOUTH ALONG THE EAST LINE OF SAID ORCHARD GROVE 69.75 FEET MORE OR LESS TO A POINT DUE WEST OF A POINT 19.75 FEET SOUTH OF THE SOUTHWEST CORNER OF SAID LOT 17;

THENCE EAST 24 FEET MORE OR LESS TO A POINT 19.75 FEET SOUTH OF THE SOUTHWEST CORNER OF SAID LOT 17;

THENCE NORTH 69.75 FEET MORE OR LESS TO THE POINT OF BEGINNING.

PARCEL NO. 3:

LOT 13 AND THE SOUTH 30 FEET OF LOT 15, OF LA VILLA PLACE, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 1 OF MAPS, PAGE 65.

PARCEL NO. 4:

THAT PART OF THE SOUTHWEST QUARTER OF SECTION 5, TOWNSHIP 1 NORTH, RANGE 3 EAST OF THE GILA AND SALT RIVER BASE AND MERIDIAN, MARICOPA COUNTY, ARIZONA, DESCRIBED AS FOLLOWS:

¹ Terms not defined herein shall have the meaning ascribed to them in the Deed of Trust.

BEGINNING AT THE SOUTHWEST CORNER OF LOT 13, LA VILLA PLACE, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA, RECORDED IN BOOK 1 OF MAPS, PAGE 65.

THENCE NORTH 80 FEET;

THENCE WEST 10 FEET;

THENCE SOUTH 80 FEET;

THENCE EAST 10 FEET TO THE POINT OF BEGINNING.

PARCEL NO. 5:

LOT 19, OF LA VILLA PLACE, ACCORDING TO THE PLAT OF RECORD IN THE OFFICE OF THE COUNTY RECORDER OF MARICOPA COUNTY, ARIZONA RECORDED IN BOOK 1 OF MAPS, PAGE 65;

TOGETHER WITH THE FOLLOWING DESCRIBED TRACT:

COMMENCING AT THE NORTHWEST CORNER OF SAID LOT 19 OF LA VILLA PLACE;

THENCE DUE WEST, A DISTANCE OF 24.00 FEET;

Unofficial Document

THENCE SOUTH AT RIGHT ANGLES, A DISTANCE OF 50.00 FEET;

THENCE EAST AT RIGHT ANGLES, A DISTANCE OF 24.00 FEET, MORE OR LESS, TO THE SOUTHWEST CORNER OF SAID LOT 19;

THENCE NORTH ALONG THE WEST LINE OF SAID LOT 19, A DISTANCE OF 50.00 FEET, MORE OR LESS, TO THE POINT OF BEGINNING.

For Information Purposes Only: The Real Property or its address is commonly known as 326, 334, 338 North 4th Avenue, Phoenix, Arizona 85003. The Real Property tax identification numbers are 111-41-041, 111-41-043, and 111-41-046.

TOGETHER WITH:

All of the Trustor's right, title and interest in and to the following:

(a) All right, title and interest which Trustor now has or may later acquire in any real property and all appurtenances, easements, covenants, rights of way, tenements, hereditaments and appurtenances, strips and gores of land, streets, ways, alleys, passages, thereunto belonging or in any way appertaining thereto now or hereafter, and all of the estate, right, title, interest, claim, demand, reversion or remainder whatsoever of Trustor therein or thereto, at law or in equity, now or hereafter in possession or expectancy, including, without limitation, all mineral, oil, and gas rights and royalties and profits therefrom, all water and water rights and shares of stock pertaining to water, water courses and water rights and powers, and all sewers and sewer rights, pipes,

conduits, wires and other facilities furnishing utility or services to the real property, air rights and development rights and credits, pumps, pipes, flumes and ditches and ditch rights, water stock, ditch and/or reservoir stock or interests, rights to oil, gas, minerals, coal and other substances of any kind or character (the "Land") located in the County of Maricopa, State of Arizona, and more particularly described above;

(b) All right, title and interest which Trustor now has or may later acquire in and to all buildings, structures and improvements now or hereafter erected, used or placed on the Land, including, without limitation, all plant equipment, apparatus, machinery, appliances and fixtures of every kind and nature whatsoever now or hereafter located on or forming part of said buildings, structures and improvements (collectively, the "Improvements");

(c) All right, title and interest which Trustor now has or may later acquire in and to the land lying in the bed of any street, road, highway or avenue now or hereafter in front of or adjoining the Property (defined below);

(d) All additions and accretions to the property described above;

(e) All licenses, authorizations, certificates, variances, consents, approvals and other permits now or hereafter pertaining to the Land and all estate, right, title and interest of Trustor in, to, under or derived from all trade names or business names relating to the Land or the present or future development, construction, operation or use of the Land;

(f) Any and all awards heretofore or ^{Unofficial Document} hereafter made by any governmental authorities (federal, state, local or otherwise) to Trustor and all subsequent owners of the Property which may be made with respect to the Property as a result of the exercise of the right of eminent domain, the alteration of the grade of any street or any other injury to or decrease of value of the Property, which said award or awards are hereby assigned to Beneficiary;

(g) Any and all unearned premiums accrued, accruing or to accrue, and the proceeds of insurance now or hereafter in effect with respect to all or any portion of the Property;

(h) Any and all claims or demands which Trustor now has or may hereafter acquire against anyone with respect to any damage to all or any portion of the Property;

(i) Any and all claims under and proceeds of any insurance policies by reason of or related to a loss of any kind sustained to the Property, now or hereafter, whether or not such policies name Beneficiary as an insured and whether or not such policies are required by Beneficiary, and whether or not such claims thereunder are characterized as personal claims;

(j) All goods, equipment, machinery, furniture, furnishings, trade fixtures, appliances, inventory, building materials, apparatus, utensils, vehicles, wiring, pipes, conduits, elevators, escalators, heating and air conditioning equipment, chattels and articles of personal property, including, without limitation, any interest therein now or at any time hereafter affixed to, attached to or used in any way in connection with or to be incorporated at any time into the Property or placed on any part thereof wheresoever located, whether or not attached to or incorporated in the Property, together with any and all accessions, accessories, attachments and replacements thereof,

appertaining and adapted to the complete and compatible use, enjoyment, occupancy, operation or improvement of the Property;

(k) All instruments, investment property, deposit accounts, accounts, contract rights, general intangibles, and other intangible property and rights now or hereafter relating to the foregoing property, or the operation thereof or used in connection therewith, including, without limitation, all options, letters of intent, and rights of first refusal of any nature whatsoever, covering all or any portion of such property, together with any modifications thereof, and deposits or other payments made in connection therewith, existing and future development rights, permits and approvals, air rights, density bonus rights and transferable development rights; all of Trustor's right, title and interest in and to any awards, remunerations, settlements or compensation heretofore made or hereafter made by any and all courts, boards, agencies, commissions, offices or authorities, of any nature whatsoever for any governmental unit (federal, state, local or otherwise) to the present or any subsequent owner of the foregoing property, including those for any vacation of, or change of grade in, any streets affecting the foregoing property and any and all licenses and privileges obtained by Trustor from non-governmental sources;

(l) All leases of the Property, Personalty (defined below), Fixtures (defined below), or any part thereof, now or hereafter entered into and all right, title and interest of Trustor thereunder, including, without limitation, cash or securities deposited thereunder to secure performance by the lessees of their obligations thereunder (whether such cash or securities are to be held until the expiration of the terms of such leases or applied to one or more of the installments of rent coming due immediately prior to the expiration of such terms); all other rights and easements of Trustor now or hereafter existing pertaining to the use and enjoyment of the Property; and all right, title and interest of Trustor in and to all declarations of covenants, conditions and restrictions as may affect or otherwise relate to the Property;

(m) All permits, plans, licenses, specifications, subdivision rights, security interests, contracts, contract rights, public utility deposits, prepaid sewer and water hook-up charges, or other rights as may affect or otherwise relate to the Property;

(n) All rents, income, issues and profits (subject, however, to the rights given in the Deed of Trust to Beneficiary to collect and apply same), including, without limitation, the accounts, revenues and proceeds of any business operation conducted by or on behalf of Trustor on or through the use of the Property, prepaid municipal and utility fees, bonds, revenues, income and other benefits to which Trustor may now or hereafter be entitled to, or which are derived from, the Property or any portion thereof or interest therein.

The foregoing listing is intended only to be descriptive of the property encumbered hereby, and not exclusive or all inclusive. It is the intent of Trustor to encumber hereby all property located or to be located upon the above-described real property. Said real property (or the leasehold estate if the Deed of Trust encumbers a leasehold estate), buildings, improvements, appurtenances, Fixtures, Personalty, additions, accretions, and other property are herein referred to as the "Property." As used herein, the term "Fixtures" shall include all articles of personal property hereinabove described, now or hereafter attached to, placed upon for a definite term, or otherwise used in connection with the Property, and shall include trade fixtures and goods which are or are to become fixtures. As used herein, the term "Personalty" shall include all furniture, furnishings, equipment, machinery, goods, contract rights, general intangibles, money, deposit accounts,

instruments, accounts, leases, chattel paper and other personal property described in the Deed of Trust (other than Fixtures) of any kind or character now existing or hereafter arising or acquired, now or hereafter located upon, within or about the Property, or which otherwise pertains to the use, ownership, management, operation, construction, leasing and sale of the Property, and all products and proceeds thereof, and all of Trustor's right, title, and interest in and to all such property.

Unofficial Document